

26STCP01835 26STCP01835

County: los-angeles

Division: Civil Law and Motion

Department: 833

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Case Number: 26STCP01835 Hearing Date: September 16, 2026 Dept: 833

Ballona Wetlands Land Trust Case No. 26STCP01835

Hearing:

September 16, 2026

v.

Location:

Stanley Mosk Courthouse

Department:

833

California

Department of Fish and Wildlife Judge:

Joseph Lipner

[Tentative] Order Granting

Motion for Judgment on the Pleadings

Respondent California Department of

Fish and Wildlife (the "Department") moves for judgment on the pleadings filed

by Petitioner Ballona Wetlands Land Trust ("Petitioner").

The Court GRANTS the Motion for Judgment on

the Pleadings WITH LEAVE TO AMEND. Petitioner must amend within 20 days. The

Court CONTINUES the trial setting conference to November 18, 2026.

As

explained in more detail below, the Court concludes that the Petition adequately alleges that funds have been allocated by the Legislature for drafting a land management plan. However, the petition does not contain sufficient allegations to overcome the statute of limitations problem raised by the pleading itself. Petitioner will be given an opportunity to address the statute of limitations issue in an amended pleading.

BACKGROUND

On January 15, 2025, Petitioner filed a Petition for Writ of Mandate asking the Department to comply with statutory obligations under California Fish and Game Code section 1019 to prepare and publish for public review a draft Land Management Plan (“LMP”) for the Ballona Wetlands Ecological Reserve (“Ballona Wetlands Reserve”). (Petition, ¶ 1.)

According to the Petition, LMPs are critical guidance documents for the management and operation of Department properties and serve several crucial functions, including outlining the management of habitats and wildlife, balancing public and recreational uses, providing budgetary and management goals, and ensuring compliance with federal, state, and local environmental laws. (Petition, ¶ 2.)

The Petition alleges that the Department was required under Fish and Game Code section 1019, subd. (a) to prepare a draft LMP for public review within 18 months of the date of recordation of the State’s ownership of the Ballona Wetlands Reserve, a deadline that elapsed decades ago. (Petition, ¶ 3.) According to the Petition, the property that now constitutes the Ballona Wetlands Reserve was acquired by the State in a series of transactions occurring between 2000 and 2004, and the parcels at issue were recorded “no later than February 17, 2004.” (Petition, ¶¶ 35-41, 65.) On August 19, 2005, the California Fish and Game Commission designated the property as an “ecological reserve” pursuant to Fish and Game Code section 1580 et seq. (Petition ¶¶ 43, 67) Petitioner alleges that the Department “was statutorily obligated to complete preparation and release of the draft LMP [land management plan] for the Reserve by no later than February 19, 2007 (i.e., within 18 months of August 19, 2005).” (Petition ¶ 67.)

Petitioner

further alleges that the Department is in the process of preparing an LMP and that the initial expected completion date of 2024 was extended to 2025 and then

2026. (Id. ¶¶ 46, 51.) Petitioner contends that the Department has failed to prepare and release a draft LMP for the Reserve within the 18-month period required under Section 109, subd. (a). (Petition, ¶ 3.)

The Petition also claims that “[a]ny improper delay or conditioning by [the Department] in releasing the [Ballona Wetlands Reserve’s] LMP until implementation of other projects at the Reserve, including, but not limited to, the Ballona Wetlands Restoration Project and its CEQA environmental review, is legally indefensible and would contravene both the intent and purpose of Section 1019(a) and [the Department’s] organizational mission set forth in Fish and Game Code section 712.1(a). (Petition, ¶ 5.)

LEGAL STANDARD

Either prior to trial, but after the time to answer or demur has passed, or at the trial, the petitioner or respondent may move for judgment on the pleadings and that the appropriate ground for such a motion is the same as that arguable by general demurrer, namely, the failure to state a cause of action or defense. (Dobbins v. Hardister (1966) 242 Cal.App.2d 787, 791; See also Sofias v. Bank of America (1985) 172 Cal.App.3d 583, 586 [The non-statutory motion for judgment on the pleadings can be made at any time, even during trial, since the grounds for a general demurrer are never waived.], see also Code Civ. Proc., § 438, subd. (f).)

A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed. (See, e.g., Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (TRG 1998) §§ 7:275, 7:322; Lance Camper Manufacturing Corp. v. Republic Indemnity Co. (1996) 44 Cal.App.4th 194, 198.) Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings. (Id.; Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999.) Both a demurrer and a motion for judgment on the pleadings accept as true all material factual allegations of the challenged pleadings, unless contrary to law or to facts of which a court may take judicial notice. (Mechanical Contractors Assn. v. Greater Bay Area Assn. (1998) 66 Cal.App.4th 672, 677; Edwards v. Centex Real Estate Corp, (1997) 53 Cal.App.4th 15, 27.)

The motion may be made

only after one of the following conditions has occurred: (1) If the moving party is a petitioner, and the respondent has already filed his or her answer to the complaint and the time for the petitioner to demur to the answer has expired; (2) If the moving party is a respondent, and the respondent has already filed his or her answer to the complaint and the time for the respondent to demur to the complaint has expired. (Code Civ. Proc., § 438, subd. (f).) The motion provided for in Code of Civil Procedure section 438 may be made even though either of the following conditions exist: (1) The moving party has already demurred to the complaint or answer, as the case may be, on the same grounds as is the basis for the motion provided for in this section and the demurrer has been overruled, provided that there has been a material change in applicable case law or statute since the ruling on the demurrer; (2) The moving party did not demur to the complaint or answer, as the case may be, on the same grounds as is the basis for the motion provided for in this section. (Code Civ. Proc., § 438, subd. (g).) No motion may be made pursuant to Code of Civil Procedure section 438 if a pretrial conference order has been entered pursuant to Code of Civil Procedure section 575, or within 30 days of the date the action is initially set for trial, whichever is later, unless the court otherwise permits. (Code Civ. Proc., § 438, subd. (e).)

JUDICIAL NOTICE

The Court grants the request for judicial notice ("RJN").

DISCUSSION

A.

Appropriation
of Funds

An

appropriation is a "legislative act setting aside 'a certain sum of money for a specified object in such manner that the executive officers are authorized to use that money and no more for such specified purpose.'" (St. John's Well Child & Family Center v. Schwarzenegger (2010) 50 Cal.4th 960, 977.) The Department argues that Petitioner has failed to adequately allege the existence of an appropriation of funds by the Legislature for purposes of the Department preparing an LMP. The

Court agrees with Petitioner that Petitioner has adequately alleged an appropriation of funds.

Fish

and Game Code § 1019 ("Section 1019"), subd. (a) provides as follows, with emphasis added:

Subject to an appropriation of funds by the Legislature for that purpose, for parcels wholly within its jurisdiction acquired on or after January 1, 2002, the department shall prepare draft management plans for public review within 18 months of the recordation date.

The petition contains specific allegations that the Legislature appropriated funds for the purpose of the Department preparing LMP's. Specifically, Petitioner alleges:

In 2001, the Legislature enacted AB 1602, the California Clean Water, Clean Air, Safe Neighborhood Parks, and Coastal Protection Act of 2002, a State bond measure which, in turn, was adopted and passed into law in 2002 by the voters via Proposition 40 ("Prop 40"). Prop 40 specifically allocated funds to the Wildlife Conservation Board. . . for, among other things, the preparation of LMPs for properties acquired in fee by the State. Thus, via the enactment and passage of Prop 40, the Legislature appropriated funding, as provided in Section 1019(a), for the purpose of [the Department's] preparation of LMPs, including with specific regard to funding for the preparation of the LMP for the [Ballona Wetlands] Reserve.

(Petition,

¶ 28.) The Petition explains that the Wildlife Conservation Board "is a separate and independent board statutorily established within [the Department] with authority to fund the acquisition and development of wildlife conservation areas." (Petition, ¶ 28 fn 2.) The Petition further alleges: "In 2002, California voters approved Propositions 12 and 50, providing bond funds specifically for the acquisition, protection, and restoration of wetlands. In 2002, California voters also approved and passed Prop 40, via which the Legislature allocated funding to [the Wildlife Conservation Board] for the preparation of LMPs." (Petition, ¶ 33.)

The

Petition alleges that the Wildlife Conservation Board acquired the land that became the Ballona Wetlands Reserve. (Petition, ¶ 35). Prop 40, which is codified in the Public Resources Code section 5096.600, set seq, expressly provides that \$300 million was “continuously appropriated to the Wildlife Conservation Board” for various specified activities, including “to prepare management plans for properties acquired in fee by the Wildlife Conservation Board.” (Public Resources Code, § 5096.650, subd. (a).)

The Department argues that as a matter of law these allegations fail because there must be a direct appropriation between the Legislature to the Department, not to the Wildlife Conservation Board. (Motion, 13:8-9.) This argument has no support, especially at the pleading stage. No language in Section 1019 says that there must be a “direct appropriation” to the Department, only that there be an appropriation for the LMPs. The relevant statutes make explicitly clear that money has been “continuously appropriated” for preparation of LMPs for land the Wildlife Conservation Board acquires, like the Ballona Wetlands Reserve. (Public Resources Code, § 5096.650, subd. (a).) The Legislature deposited such funds with the Wildlife Conservation Board, which sits within the Department and acquired the Ballona Wetlands Reserve for the Department.

The Department argues that the WCB must vote to make the monies available to the Department for the LMP. To the extent that the Department is asserting that there has been no appropriation because there is a realistic question as to whether WCB will release the appropriated funds, that is at most a factual argument that can be raised, if at all, at the hearing on the merits. It does not defeat the Petition at the pleading stage.

B.
Statute
of Limitations

However, there is a statute of limitations problem that appears directly from the allegations of the Petition. Petitioner filed this lawsuit on May 12, 2026, almost two decades after Petitioner states that Respondent had a duty to file an LMP. (Petition, ¶ 67.) Statutes of limitations specified in the Code of Civil Procedure apply to writ proceedings. (Kao v. Department of Corrections & Rehabilitation (2016)

244 Cal.App.4th 1326, 1332.) When a petition requests that a government agency comply with a statutory obligation, the three-year limitations period provided in C.C.P. § 338, subd. (a) applies. (Id., at p. 1334.)

Under the theory advanced by
Petitioner, Petitioner needed to have filed a lawsuit by February 19, 2010. A lawsuit filed in 2026 is years too late.

Petitioner raises a number of
exceptions to the statute of limitations rules. The Court examines each in
turn.

1.

Exceptions to Statute of Limitations: The Public Trust
Doctrine

Petitioner
argues that the public trust doctrine applies here to relieve it of the effects
of the statute of limitations. In making
this argument, Petitioner relies on *California Trout, Inc. v. State Water
Resources Control Bd.* (1989) 207 Cal.App.3d 585. This case concerned the
State Water Resources Control Board's 1974 issuance of water right licenses to
the City of Los Angeles, allowing the City to divert water from four
tributaries to Mono Lake, which had the effect of harming fish that lived in
those tributaries. (Id., pp. 595-599.) Many years later, petitioners
claimed that the State Water Resources Control Board failed to issue
appropriate conditions on water resources licenses as required by a statute to
protect fish in those tributaries. (Id., at p. 592.) The State Board
demurred on the basis that the statute of limitations had run on petitioners'
right to review the earlier 1974 water rights license decision. (Id., at
p. 598.) The Court of Appeal held that the statute at issue – was a “specific
rule concerning the public trust.” (Id., at p. 629.) The Court continued
that “[t]he ‘public trust’ interest as to fishery in a non-navigable stream is
in the nature of a state ‘property’ interest. One may not oust the state from
such an interest by operation of a statute of limitations.” (Id. at p.
630.)

That
case does not stand for the proposition that every action or inaction by a
state agency concerning a public trust resource is subject to no statute of

limitations period. The Court of Appeal was simply explaining that the State Water Resources Control Board retained the authority to revise previously issued water right permits and licenses to include new conditions necessary to protect public trust resources like fish. Here, Respondent retains authority to manage public trust resources with or without a draft management plan.

Moreover,

it is not even clear that Petitioner has properly evoked a public trust doctrine at all. In its memorandum of points and authorities, Petitioner cites to various paragraphs which it alleges invokes the public trust doctrine. (Petition, 13:20.) The Court does not find that any of the paragraphs invoke the public trust doctrine as a matter of law. The closest Petitioner comes is Paragraph 22, which states that Respondent must manage resources for the “use and enjoyment of the public.” (Petition, ¶ 22.) Managing a resource for the use and enjoyment of the public is not explicitly the same as holding a resource “in trust for the people of the state...” (Fish & Game Code § 711.7, subd. (a).) By contrast, the public trust doctrine focuses on managing a resource in the present and the future, and focuses on all residents of California.

While

there may be a public trust doctrine argument to be made with respect to the statute of limitations, Petitioner has not supported such an argument with this pleading. Upon amendment, Petitioner must clarify how the public trust doctrine applies to actual allegations made in this case.

2.

Exceptions to Statute of Limitations: Continuous Accrual
Doctrine

The

continuous accrual doctrine provides that “when an obligation or liability arises on a recurring basis, a cause of action accrues each time a wrongful act occurs, triggering a new limitations period.” (Aryeh v. Canon Business Solutions, Inc. (2013) 55 Cal.4th 1185, 1198-1199.) The California Supreme Court has identified examples of obligations that are recurring: the right to pension payments and monthly collection of taxes. (Ibid.)

However,

the obligation or liability in this case does not arise on a recurring basis. Section

1019, subd. (a) makes clear that the filing of an LMP is a one-time event that is not susceptible to recurring breaches. Either an LMP is filed, and there is no breach of a government duty or no LMP is filed, and there is a singular breach of a governmental duty. (*Water Audit California v. Merced Irrigation Dist.* (2025) 111 Cal.App.5th 1147, 1157 [continuous accrual doctrine can sometimes apply when the duty allegedly breached is a ‘continuing one’ that is ‘susceptible to recurring breaches.’].)

The

case Petitioner cites in its opposition is not persuasive. In *Water Audit*, the Merced Irrigation District closed the fish ladder on the C-H Dam in approximately 1972. (*Id.*, at p. 1158.) In August 2022, *Water Audit*, the petitioner, made a demand to reopen the fishway and gave notice of its intention to commence litigation if remediation was not promised. (*Id.*, at p. 1159.) There were allegations that the Merced Irrigation District opened and then re-closed the fish ladder. (*Id.*, at p. 1162.) The trial court ruled that a demurrer to the petition must be sustained because the petitioner had failed to plead a specific action by a specific agency occurring on a specific date that is not time barred. (*Id.*, at p. 1188.) The Court of Appeal reversed, explaining that the plaintiff was alleging ongoing violations of Fish and Game Code section 5901, which prohibits maintaining “any device or contrivance that prevents, impedes, or tends to prevent or impede, the passing of fish up and down stream.” (*Id.*, at p. 1192.)

Fish

and Game Code section 5901 is fundamentally different from the statute at issue in the case before the Court. Section 5901 does not prohibit certain activity for 18 months or 24 months. There is an ongoing prohibition against activity that impedes fish from moving up and down stream.

By

contrast, Section 1019, subd. (a) states that, “subject to an appropriation of funds by the Legislature for that purpose, for parcels wholly within its jurisdiction acquired on or after January 1, 2002, the department shall prepare draft management plans for public review within 18 months of the recordation date.” (emphasis added.)

Section 1019, subd. (a) does not and cannot apply two decades after the property was acquired.

Petitioner

also argues that Respondent has a duty to manage the Reserve for future generations, and that means Respondent cannot just simply not produce an LMP. But the Legislature did not write Section 1019 in a way that imposed an ongoing duty, only that one is due within 18 months. While it might not be ideal, the Department could theoretically carry out its duties to manage the Ballona Wetlands Reserve for future generations even though it did not draft an LMP.

Finally,
the petition alleges that Respondent has been working an LMP in the past few years and has continued to delay putting out. (See Petition, ¶¶ 42-53.) These allegations do not advance Petitioner's point. State agencies may undertake discretionary actions they are not obligated to take. It does not demonstrate an ongoing duty.

Based
on the above analysis, the Court concludes that the continuous accrual doctrine does not apply to address the statute of limitations issue.

3.
Exceptions to Statute of Limitations: Continuous Violation
Doctrine

The
continuing violation doctrine "aggregates a series of wrongs or injuries for purposes of the statute of limitations, treating the limitations period as accruing for all of them upon commission or sufferance of the last of them." (Willis v. City of Carlsbad (2020) 48 Cal.App.4th 1104, 1124 (Willis).) The continuing violation doctrine appears to be particularly relevant to employment discrimination cases. (Brome v. California Highway Patrol (2020) 44 Cal.App.5th 786, 798-799 (Brome).)

The
Court concludes that the continuing violation doctrine does not apply here. Petitioner is complaining of Respondent's alleged failure to take a single, discrete action (not creating an LMP), not a series of wrongs or injuries.

Petitioner
does not cite any case where one discrete wrong fell under the continuing violation doctrine. Aryeh v. Canon Business Solutions, Inc. (2013) 55 Cal.4th 1185, 1190, 1198, has to do with a defendant who made too many at

successive monthly service visits, resulting in excess copy charges each time. Willis, supra, 48 Cal.App.4th at p 1112-1113 had to do with multiple instances of a denial of a promotion. Richards v. CH2M Hill, Inc. (2001) 26 Cal.4th 798, 802-807 dealt with multiple discrete issues of disability access. Brome, supra, 44 Cal.App.5th at p. 798-800 had to do with multiple discrete cases of discrimination based on sexual orientation.

This

is not a case where Petitioner is complaining of multiple statutory violations. This is also not a case where Petitioner is complaining of Respondent repeatedly violating a statute. Hypothetically, if the statute had required an LMP every four years, there would be grounds to say the continuous violation doctrine could apply. But the statute is not written that way. Respondent must prepare an LMP within 18 months of acquiring a property, and that meant an LMP needed to have been created for the Reserve by February 2007. (Petition ¶ 67.)

Petitioner

argues that Respondent's actions had not acquired the "degree of permanence" required to trigger the accrual of the statute of limitations period because Respondent had never formally refused to prepare the LMP. The Court does not find this argument persuasive based on the current petition. As written, the statute required an LMP to be created by February 19, 2007. If an LMP was not created on February 19, 2007, Respondent was in violation of Fish & Game Code Section 1019, subd. (a). Respondent does not need to announce they are not going to comply with a statute for Respondent to be in violation of the statute.

Additionally,

taken to its extreme, Petitioner's argument would seem to open the door to the Court hearing petitions based on actions taken long ago. If Respondent had failed to prepare an LMP in 1965 or 1973, but had never officially refused to prepare one, could a moving party seek a writ of mandate directing a governmental agency to comply with a duty they had from 50 or 60 years ago? What about 90 or 100 years ago? Where could courts draw the line?

Based

on the above analysis, the Court concludes that the continuous violation doctrine does not apply to address the statute of limitations issue.

4.

Exceptions to Statute of Limitations: Equitable Estoppel

The

equitable estoppel doctrine provides that if an entity, including a governmental entity, takes actions which would induce a reasonably prudent person to avoid seeking legal advice or personally commencing litigation, that entity may be estopped from asserting a defense including the statute of limitations. (Citizens for a Responsible Caltrans Decision v. Department of Transportation (2020) 46 Cal.App.5th 1103, 1128.)

Respondent

has continually and repeatedly stated that an LMP would be forthcoming. (Petition, ¶¶ 42-54, 59.) Petitioner does not allege that this delayed them from filing a lawsuit. Even if Petitioner did allege this, equitable estoppel would not apply.

Petitioner

would need to provide facts concerning actions Respondent took prior to the running of the statute of limitations that induced Petitioner from timely commencing litigation within the limitations period. Petitioner has not made any such allegation in the current petition.

CONCLUSION

The Court GRANTS the Motion for Judgment on the Pleadings, and GRANTS leave to amend to add any appropriate allegations showing that the claims are not time-barred. Petitioner must amend within 20 days.

IT IS SO ORDERED.

Dated: September
16, 2026

Joseph
Lipner

Superior

Court Judge